

Court No. - 3

Case :- WRIT - C No. - 6355 of 2022

Petitioner :- Jitendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kumar Dubey

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"(I) Issue a writ, order or direction in the nature of certiorari to quash the impugned recovery citation dated 6.1.2022 demanding the amount a sum of Rs. 11,57,839/ alongwith interest passed by respondent no.4 as arrears of land revenue, during the pendency of present writ petition (Annexur no.1).

(II) Issue a writ, order or direction in the nature of mandamus commanding the respondent authority to not take any coercive action in pursuance of the recovery citation dated 6.1.2022 till the disposal of Application/Appal dated 29.1.2022."

Sri Udit Chandra, learned counsel for the respondent Nos. 2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.5.2022

sfa/